TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 27, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner
Absent: Molly Hall
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:03 pm.

1. Approval of Agenda

▶ *Mr. Butner moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.*

2. Approval of Minutes

▶ *Mr. Butner moved for approval of the minutes. Ms. Stevens seconded the motion. All in favor.*

3. Public Comment
4. General Correspondence

There being no comments, Mr. Wood continued with the agenda. All correspondence was linked to the agenda.

5. Explanation of Procedures
6. Administration of Oath

▶ Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

7. Business

A. Case A-01-25, 779 3rd Street, TMS# 514-09-00-045, Appeal of Zoning official's determination of §156.170(B) which requires the parking area

of the parcel to have direct access to a street or alley. **Zoning Official Determination**

Mr. Swalhah reviewed staff comments with the Board.

- Mr. Paul Ferrara, attorney for applicant, reviewed the request with the Board. He asked that he be allowed to submit additional photos.

- *Mr. Butner moved for approval of submission of additional photos. Ms. Stevens seconded the motion. Motion carried on a 4 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Mr. Wood in favor; Mr. Barrow opposed.*

- Ms. Jackie Gore, 308 6th Ave, stated that there is a rich history of the area. She stated that the neighborhood is opposed to the request. She suggested that the easement would pose a safety issue as the access would be on the curve of the street.

- Ms. Katie Mallace, 152 6th Ave, stated that they are in dispute of ownership of the right-of-way property and asked that the item be deferred until the issue of ownership can be finalized.

- Mr. Mark Joy, 172 Wando Reach Court, suggested that the property in question is all marsh and there is no high ground to support right-of-way. He suggested that the approval is for a pedestrian walkway and not access for vehicles. He suggested that the request should not be approved. He suggested that these hammocks should not be allowed to be developed if they do not meet the requirements. He suggested that a hearing for the quit claim deed dispute is scheduled for March.

- Mr. George Bixler, 144 3rd Ave, suggested that this is a "predatory" request and should not be allowed.

- Mr. Wood administered the oath to Ms. Pam Ireland, Harbor Watch HOA president. Ms. Ireland suggested that the request from OCRM was for a recreational use and not vehicles. She suggested that the property cannot be developed and there is a plat that indicates that the property should not be developed.

- Mr. John Sirigos, 85 5th Ave, suggested that this property is not developable, and the request should be denied. He stated that a petition was submitted at the last meeting in opposition of the property being developed.

- Mr. Ferrara rebutted that the property is developable as indicated on the plat. He stated that the unopened easement of 3rd Street in dispute is not pertinent to this matter. He stated that OCRM has granted an easement for the walkway through Mr. Horton's property. He suggested that the denial of the development plan because of having no off-street parking should not apply to his client's property as they have access to the property through the easement. He suggested that private concerns should not have a bearing on this request.

- Mr. Swalhah reviewed ordinance §156.172 regarding off-street parking with Board. He stated that the required documentation showing off-street parking was not provided at the time the request was reviewed. He stated that the walkway is not sufficient to provide vehicle access.

- Mr. Barrow indicated that he knows Mr. Joy and Mr. Ferrara and is a professional colleague of both gentlemen. He stated that he does not consider this a conflict of interest and can issue a fair and unbiased decision.

The Board convened for a short break at 7:11 pm and reconvened at 7:15 pm.

Mr. Swalhah stated that the applicant has requested a withdrawal. Being no motion made for withdrawal, the Board continued with disposition of the case.

- Mr. Wood closed public comment.

- *Mr. Wood moved to uphold the Zoning Administrators decision, based on the information that was provided with the application and the law that was being interpreted, with the understanding that the applicant can comply with the ordinances and attempt to reach an agreement with the Town. Mr. Butner seconded the motion. All in favor.*

B. Case V-01-25, 302 Wingo Way, TMS# 514-13-00-420, Request for relief from §156.155(B)(2)(a)(3) to allow a tenant that occupies 8,000 square feet of the property to qualify as the anchor tenant for the purpose of

signage. The ordinance requires a tenant to occupy a minimum of 20,000 square feet of the property to be considered the anchor tenant.

- Ms. Swalhah reviewed staff comments with the Board.

- Mr. David Tart, 1560 Hancock, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings that the applicant relied on incorrect information from the Town and applied in good faith based on that information. Mr. Butner seconded the motion. All in favor.*

C. Case V-02-25, 1489 Oaklanding Road, TMS# 560-09-00-162, Request for relief from §156.225(C) to allow the removal of a 34'' Historic Live Oak.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Jillian Query and Mr. John Query, owners, reviewed the request with the Board.

- Ms. Michele Stress, 545 Veranda View, suggested that the pool is not a necessity and should have been aware of the power lines on the property. She expressed concern with a main lead of the tree being removed without permission. She asked that the request be denied.

- Mr. David Quick, 1502 Village Square, stated that the Flood Resilience Committee recently reviewed the number of tree removals approved, and a number of the trees removed were because of pool construction. He expressed concern that this request would remove a good oak tree. He asked that the request be denied, and the tree preserved.

- Mr. Mike Tinkey, 208 Venning, suggested that the tree was in place when the property was purchased, and the owners were aware of the tree. He suggested that the tree should be preserved and not be allowed to be removed.

- Mr. and Ms. Query rebutted that the error was on the part of the pool company and if they were aware of the power lines, they would have tried relocating the tree or finding a different location for the pool. Ms. Query suggested that they should be able to develop on their property and mitigate the removal of the tree.

- Mr. Swalhah clarified that relief of any required mitigation was not included in the request to the Board and would have to be completed.

There being no further comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there is an ordinance guiding the removal of protected and historic trees; the request does not meet the criteria for granting the variance as there are no unique conditions as there are other properties with historic trees on them; while the power lines could be considered unique, there are other properties with buried power lines; denial would not prohibit the utilization of the property and the applicant has testified that they are currently living on the property; approval would be detrimental to the character of the neighborhood as it would decrease the tree canopy of the Town. Ms. Stevens seconded the motion. All in favor.*

The Board convened for a short break at 7:40 pm and reconvened at 7:45 pm.

D. Case V-03-25, 1047 Royalist Road, TMS# 562-02-00-102, Request for relief from §156.225(C) to allow the removal of a 25'' Historic Chestnut Oak.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Joel Adrian, Coastal Creek Design, reviewed the request with the Board.

- Mr. Mike Tinkey, 208 Venning, stated that there are two other trees to be removed for the location of a pool. He suggested that this would be 66 inches

of tree being removed. He suggested that the pool could be relocated so that the trees would not have to be removed.

- Mr. David Quick, 1502 Village Square, suggested that a pool is not required to provide living. He suggested that diversity is needed for the wildlife and groupings of trees provides better stability.

- Ms. Michele Stress, 545 Veranda View, reiterated from the previous request that a pool is not a necessity. She suggested that the trees should not be allowed to be removed to provide a "pathway for equipment". She asked that the request be denied. She suggested that we should better accommodate nature rather than nature accommodating human beings.

- Mr. Adrian rebutted that the request is only for the 25-inch chestnut. He suggested that there is diversity of trees along the rear of the property. He suggested that the removal would not negatively impact the neighborhood.

- Mr. Swalhah clarified that the other two trees are protected but are not historic and can be removed with mitigation. He stated that the equipment cannot encroach into a drainage easement or tree protection zones.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that a pool is not a necessity; there is no unnecessary hardship to grant the variance; does not meet the criteria for a variance as denial would not prohibit the utilization of the property; there are no extraordinary conditions as there are other properties with historic trees; conditions apply to other properties as referenced by the previous case; and if granted it would be a detriment to the public good. Mr. Branch seconded the motion. All in favor.*

E. Case V-04-25, 1058 Phillips Park Drive, TMS# 532-07-00-251, Request for relief from §156.303(Table) to allow a 6'' encroachment into the rear yard setback. The ordinance requires a 25' setback from the rear property line for this parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Linda Balzac, architect for the owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the criteria to grant a variance has been met. Mr. Butner seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 8:03 pm.

Submitted by,
L. Lynes
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